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Archipelagic Geopolitics and the Oceanic Embedding of the *Nomos* of the Earth

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Abstract: This article brings into dialogue the debate on the governance of the global commons and the emergent postcolonial discourse on 'archipelagic thinking' on the basis of an interpretation of Carl Schmitt's idea of the *Grossraum* in international law. It analyses two axioms in Schmitt's discourse on international law: the first is that the character of law as *nomos* varies depending on the elements of planetary habitability, such as earth, sea, air and energy/fire, in which it operates. The second concerns the relation that Schmitt establishes between maritime imperialism, settler colonialism and the practice of islanding. The article proposes to understand archipelagic thinking as a deconstructive intervention in the imperial geopolitical dualism between land and sea, shows the 'archipelagic' dimensions of the United Nations Convention on Law of the Sea, and offers a defence of the Common Heritage of Mankind principle.

Keywords: archipelagic state, Carl Schmitt, Elisabeth Mann Borgese, global commons, *Grossraum,* land–sea dualism, postcolonialism, UNCLOS

This article brings into dialogue the ongoing debate on the governance of the global commons, of which the extraterritorial oceans and outer space form the most important and currently legally recognised components, and the emergent discourse on 'archipelagic thinking', which is a theoretically innovative and promising postcolonial approach to geopolitics. I propose to understand archipelagic thinking

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as a deconstructive intervention in the imperial geopolitical dualism between land and sea. To this end, I work through two lesser-known features of Carl Schmitt's discourse on the *nomos* of the Earth and his attempt to establish the legitimacy of a geopolitical idea of the *Grossraum* ('large space') in international law. The first concerns Schmitt's axiom that the character of law as *nomos* varies depending on the elements of planetary habitability, such as earth, sea, air and energy/fire, in which it operates. The second concerns the relation that Schmitt establishes between maritime imperialism, settler colonialism and the practice of islanding. I show how the current debate on the global commons of the oceans, as expressed in the United Nations Convention on Law of the Sea (UNCLOS) and related governance institutions, both adopts and subverts the thinking of *Grossraum* as applied to the deep oceanic seabed.

Post-Schmittian Reflections on the De-Anchoring of the Island

While Schmitt's geopolitical thought has been explored at some length in the secondary literature (Hohendahl 2018; Simons 2016), to date the application of his conceptions of the *nomos* (Schmitt 1995, 2003b) and the *Grossraum* (Schmitt 2011) to the debate on the global commons and archipelagic thinking is not widespread.[1] Thus, my treatment of Schmitt focusses only on the aspects of his discourse on international law that connect with these themes. According to Schmitt, the conquest of the Americas initiated 'a huge … planetary space revolution [*Raumrevolution*]' (Schmitt 1995: 405). On his controversial reconstruction of early modern European history, the Iberian empires considered the New World as another land mass upon which to extend their land-based empires, while the English took the 'fateful decision' to break away from the European continent and to view geopolitics from the perspective of the sea.[2] England became a 'ship or even a fish, the great whale, the Leviathan' whose true 'home' would become the 'open seas', a 'great space' that was previously considered to be 'inhospitable' and 'foreign', at least for the imaginary of Western Christendom, but that was mastered through English technological innovation and 'boldness' (Schmitt 1995: 416).[3] It is on this basis that Schmitt advances the axiom that to land and sea powers there correspond entirely different systems of law and state, a different *nomos* or *ius gentium* (*Völkerrecht,* international law) of the Earth, depending

on which element they choose as their medium of existence (Schmitt 1995: 417).[4]

Schmitt took over the opposition of land and sea from Alfred Thayer Mahan's account of British sea power and especially from Halford Mackinder's heartland theory and his 1919 book *Democratic Ideals and Reality,* which had posited a civilisational struggle between land-based and sea-based powers that adopted an 'oceanic' conception of freedom.[5] For Mackinder, 'civilisation' always grows on the coastline, and it is propelled by 'world islanders', which in his case were exemplified by the English and the North Americans. The unique suggestion of Mackinder's geopolitics consists in universalising the island perspective. Indeed, Mackinder sees Asia, or the 'heartland', not as the paradigmatic land mass, which therefore will 'always' be open to invasion from the 'sea', but as being itself an island. He prophesies that the day will come when Eurasia acquires access to all the world's oceans and offset the traditional weaknesses of both the Russian and the Chinese empires, thereby posing a real threat to the currently hegemonic Anglo-American islands.[6]

For Schmitt, the new sea-based *nomos* of the planet imposed 'typical English methods of sea warfare as the universally recognized rules of international law' (Schmitt 1995: 418). In terms of international law, naval supremacy underlies the Grotian conception of oceans as 'free seas', where ships have free passage over the *res communis* of the oceans which cannot be 'appropriated' nor 'grabbed' by land powers. The traversal of the oceans on board ships occurs within determined 'lanes' that were established for the sake of commerce (principally of other human beings as slaves and of raw materials extracted from the colonies) in a centre–periphery circuit that was fundamental for the construction of the modern capitalist 'world-system' on the ideological support of 'negative' conceptions of liberty and 'free trade' (Wallerstein 2011). Schmitt concludes that England had 'in view an economic space of domination [*Beherrschungsraum*]' through which it could control or break up the trading of weaker sea powers. English imperial hegemony based on the freedom of the seas has three defining characteristics: 'the non-state societal character of English rule, the predominance of "indirect" methods of rule and . . . what I shall call the "de-anchoring" of the island [*die "Entankerung" der Insel*]', by which Schmitt means the establishment of the British Empire thanks to settler colonies (Schmitt 1995: 419).[7] In this article, I focus on this strange expression, namely, the 'de-anchoring' of the island, and connect it to my theme of 'archipelagic' thinking beyond the land–sea distinction.

My hypothesis is that UNCLOS contains a Global South discourse on archipelagoes that seeks to reverse the British imperial practice, based on de-anchoring the English island and on islanding its overseas territories. Archipelagic thinking in this sense is part and parcel of an anti-colonial practice of de-islanding.[8]

Schmitt thought that the Second World War had ended the sea-based *nomos* of the Earth. With the introduction of airborne warfare, the element of air was set to take over from that of water, and international law would be modelled on the new requirements for the conquest of outer space (Schmitt 1995: 521).[9] Despite Schmitt's awareness that the 'enmity' between developed and developing nations would decisively determine the destiny of international law in the years after the Second World War, he never considered that the ocean could give rise to a different *nomos* of the Earth advanced by developing nations and based on principles other than the ones of maritime imperialism.[10] Schmitt did not see the possibility of a *nomos* developing out of an archipelagic thinking that moves beyond the land–sea dualism and considers the oceans as the 'homeland' of humankind rather than as an inhospitable frontier.

Islanding and De-Islanding: The Archipelagic Paradigm

Archipelagic thinking is a counter-discourse to the discourse that emerged from the practice of 'islanding' that was congenital to the British imperial *nomos* over the Earth achieved through its 'mastery' of the oceans. The case of Ceylon as crown colony indicates how the British Empire worked by 'islanding and partitioning' what was previously considered archipelagically (Kumarakulasingam 2016: 55).[11] The 'islanding' of Ceylon entailed the 'policing of the movements of peoples, goods and ideas between mainland and island and the "fabrication" of some people into "natives" and others into "foreigners"' (Kumarakulasingam 2016: 55). Since archipelagic thinking is sometimes dated back to the 1955 Bandung Africa Asia Conference as the key event in the emergence of decolonial thinking,[12] and considered in light of the Ceylon example of islanding, it is not surprising that Narendran Kumarakulasingam (2016) considers Bandung as an event that inaugurates a Global South practice of 'de-islanding'.

The literature on archipelagic thinking emphasises the etymology of the word: derived from the Greek (*archē* = 'chief', or 'principal'; *pelagos* = 'deep sea'), its first usage is found in a 1268 treaty between

Venice and the Byzantine emperor Michael VIII Palaiologos, where the term refers to the islands in the Aegean Sea between Greece and Asia Minor.[13] The first use of the term in a treaty of international law thus precedes the British imperial view of the seas, and is tied to a 'thalassic' vision of the Mediterranean as an 'internal' ocean that holds together distinct cultures (Horden and Purcell 2006). The early OED definition of the archipelago as 'any sea or sheet of water in which there are numerous islands' refers to the later imperial application of the term to the Caribbean, Indonesia and the Pacific Islands.[14] In this 'imperial' understanding of the term, 'the island-studded Aegean is … cast in the role of mother and sovereign to all the other seas of the globe' (Scholar 2015). This etymology, however, does not highlight another connotation of the term *pelagos* which refers to the 'abyss' of the oceans out of which emerge the specks of land. This idea of the abyss as the connecting bond between islands, rather than any attachment to the mainland they may have, is crucial for the new law of the sea, as I discuss below.[15]

Bandung's exercise in global de-islanding was also the stage on which Indonesia first proposed to establish itself in international law as an 'archipelagic state' and use the idea of an archipelago to 'unite a disparate archipelago of ethnic groups sprawling across a disparate set of islands' (Roberts 2020: 89). To this end, it was essential to give a postcolonial meaning to the idea of the archipelago.[16] In advancing the concept of 'archipelagic state' in 1955, Sukarno adopted the 1928 Youth Pledge, which called for 'the promise to have one language, one homeland [*bartanah air setu*], and one nation' that held together the thousands of islands.[17] In Bandung, Sukarno pitched this idea with the claim that 'Indonesia is Asia-Africa in small': 'Sukarno proposed archipelagic Indonesia's motto – Unity in Diversity – as a model for Asia-Africa' (Roberts 2020: 90). These efforts came about a decade before the UNCLOS process began, but Sukarno was clearly provident enough to already pitch the archipelago idea in Bandung, counting on the future support of the Global South in the United Nations setting.

The key to this new conception of the archipelagic state is the idea of 'one homeland' [*bartanah air setu*] mentioned in the 1928 Youth Pledge, which contains the 'idea of *tanah air* (or "fatherland" or, as Sukarno used, "motherland")' (Roberts 2020: 93). The expression *tanah air* contains the components of land (*tanah*) and sea (*air*), and Roberts argues that they are best understood as 'waterland' (or 'wateryland') or 'land of water' rather than as 'motherland' or 'fatherland' (Roberts 2020: 93). This idea of the archipelagic homeland is

the key ideological component of the archipelagic state. If one recalls Schmitt's claim that international legal regimes are rooted either in the elements of land or those of the sea, then the *tanah-air* formula offers a new configuration of land and sea that disavows Schmitt's dualism. The point, as Roberts says, is that this etymological wordsmithing eventually had a direct impact on international law, where 'the sovereignty of an archipelagic state extends to the waters enclosed by the archipelagic baselines … described as archipelagic waters' (UNCLOS 1983, 15–16). Indeed, the Indonesian representative's speech at the Third United Nations Conference on the Law of the Sea of 1974 reminded his audience that Indonesia's self-proclamation as an archipelagic state in 1957 was based on the 'unitary [idea] of the land and water territories of Indonesia as reflected in the word *tanah-air*' (Roberts 2020: 96).[18] Thus, the idea of the archipelago as reconceived out of the concept of *tanah-air* is what receives in the end 'the force of international law vis-à-vis the term "archipelago"' (Roberts 2020: 97). To date, the dispute in the South China Sea remains dependent on the acceptance by China (which is a signatory to UNCLOS) of this archipelagic vocabulary.[19]

The connection between archipelagic thinking and UNCLOS in the case of Indonesia's redefinition as an archipelagic state was first made explicit by (Danusaputro 1974). In 1957, the Indonesian government proclaimed the Wawasan Nusantara ('Archipelagic Outlook'), a vision that proclaimed that the waters and territories of its archipelago formed one political, cultural, linguistic unified whole. The term *wawasan nusantara* refers to the 'outlook of oneself and one's environment' (*wawasan*) that is derived from *nusantara,* the 'islands world' of Indonesia. This archipelago is understood as being at a 'world cross-road position', not only between two continents but also between two oceans, the Pacific and the Indian. In this sense, one can perhaps say that the Wawasan Nusantara is interpreted by St. Munadjat Danusaputro as an alternative principle or reformulation of the Grotian principle of the freedom of the seas because 'this geopolitical fact' of the Indonesian Archipelago 'clearly shows that Indonesia has the role and simultaneously the duty to endeavor to ensure that this world cross-road always runs smoothly and is never closed' (Danusaputro 1974: 53). Besides offering an alternative Global South vision of the freedom of the seas, the Wawasan Nusantara also reflects an emerging planetary understanding of international order, one that imposes duties and obligations on states that is determined by their location within the element of the ocean and its uninterrupted flowing.[20]

The Wawasan Nusantara provides the basis for integrating Indonesia as an 'archipelagic' state. Strikingly, Danusaputro refers to a Venetian-Byzantine treaty from 1268 that ended the hostilities between the two powers and allowed for a peaceful sharing of the Aegean Sea. For the Indonesian author, the use of the term *archipelago* in this European medieval treaty is fundamental because it signifies that 'the islands were always considered as being one "whole unit". . . . And so was born the Archipelago principle which viewed "those islands always as one whole unit" where the water (= sea) element between the islands functioned as a "linkage element" and not as a "dividing element". On the basis of this conception, we named our archipelago *tanah-air* (land-water = homeland)' (Danusaputro 1974: 56).[21] This claim clearly expresses the 'elemental' factor of the ocean as grounds for a political 'unit' (namely, the archipelagic state). In addition, it supports my hypothesis that the ocean is here considered to be a 'linkage element' between islands rather than an element that separates land masses. In other words, the archipelago principle (and the term 'principle' here is intentionally meant to function as basis for concept-building in the discourse of international law) derives from the sea rather than from the land. My claim is that this logic will be extended in UNCLOS in relation to the sea as the 'deep' or 'abyss' where the oceanic seabed will become the principle of unity for an archipelagic constellation of Global South nations.

In sum, archipelagic thinking needs to be contextualised within the shift from land to sea that determines an empire-centered idea of international law. The geopolitical construction of the archipelago seeks to subvert the process of 'islanding' and reunites, under the aegis of a new international law of the sea, what was partitioned by European colonialism and imperialism. Furthermore, the archipelagisation of international law in UNCLOS depends on the recovery of the idea of the deep or the abyss as a large space (*Grossraum*) of non-sovereignty, out of which it is possible to reconfigure a post-colonial idea of the archipelagic state. This 'elemental' dimension of the oceanic depths has to date not received sufficient attention from international legal theorists nor in the discourse on archipelagic thinking. Only by appealing to an elementary, *nomos*-based approach to international law can one begin to appreciate how the idea of the archipelago constitutes a break with the traditional approach to the law of the sea based on the dualism between Hugo Grotius's *mare liberum* and John Selden's *mare clausum* principles. This traditional debate is a derivative of a discourse on the commons and their

enclosure that, as I argue next, is turned on its head with the oceanic perspective brought upon international law through the new law of the sea (UNCLOS).

Pardo, UNCLOS and the Ocean as *Grossraum* of Humankind

The literature on the development and meaning of UNCLOS is large, and it is beyond the scope of this article to engage with it in a comprehensive fashion (Rothwell 2015). My interest in this section is to show in what way the 'founding fathers and mothers' of the UNCLOS spirit, and in particular of its foundational principle, the Common Heritage of Mankind (CHM), envisaged UNCLOS as a vehicle for a new conception of the *nomos* of the Earth, a 'constitution of the oceans' that would undo the imperialist character of the *nomos* as described by Schmitt. At the same time, I argue that the foundational discourses of UNCLOS adopted – most likely in an unconscious fashion – some of Schmitt's insights, both in relation to the limitations of liberal international law and the need to move beyond the principle of national territorial sovereignty by considering 'large spaces' (*Grossräume*) that must remain free from land grabs.[22]

The first post–Second World War project of world constitutionalism that contains an explicit planetary dimension is the *Preliminary Draft of a World Constitution* of 1948 (Hutchins and Borgese 1948).[23] The *Draft* begins with the claim that 'the age of nations must end and the era of humanity begin' when all sovereign nations 'surrender their arms' (that is, give up *jus belli*) and 'covenant' under the Constitution of a 'Federal Republic of the World' (Hutchins and Borgese 1948: 3). The normative basis of this world constitution is a new fundamental right (of all peoples) to a 'release from the bondage of poverty', to which the authors add the 'freedom of peaceful assembly and association' and the 'protection of individuals and groups against subjugation and tyrannical rule' (Hutchins and Borgese 1948: 5). The *Draft* proceeds to state:

> The four elements of life – earth, water, air, energy – are the common property of the human race. The management and use of such portions thereof as are vested in or assigned to particular ownership, private or corporate or national or regional, of definite or indefinite tenure, of individualist or collectivist economy, shall be subordinated in each and all cases to the interests of the common good. (Hutchins and Borgese 1948: 6)

This proposition inaugurates a planetary outlook on the *nomos* of the Earth, based on the non-appropriation of the global commons of land, sea, air and energy in view of overcoming the division of the world into 'developed' and 'underdeveloped' nations.

The official entrance of the elementary and planetary perspective on international law and world peace is usually dated to Arvid Pardo's legendary speech at the UN General Assembly meeting of 1 November 1967. This speech has been analysed before, but to date the *nomos* perspective has not been associated with it.[24] This is a curious oversight because Pardo's argument very much revolves around the recognition of the role played by land grabs in the formation of previous international law. Pardo's central concern is preventing the deep seabed and ocean floor from being 'progressively and competitively appropriated, exploited and used for military purposes by those who possess the required technology' (1967: sect. 5). In a new world order that was emerging out of anti-colonial struggles, Pardo evoked the spectre that a 'competitive scramble for sovereign rights over the land underlying the world's seas and oceans' would dwarf in magnitude and implications 'last century's colonial scramble for territory in Asia and Africa' (1967: sec. 12). Clearly, Pardo was seeking a transformation of international law that would register the Bandung de-islanding agenda.

The context for Pardo's intervention was provided by the Truman Proclamation of 1947, which extended national sovereignty over the continental shelf. This was followed by a pushback by Latin American states.[25] This inter-American dispute was carried out on the basis of a conflict of interpretations around the Monroe Doctrine, which viewed the Americas as a prototypical *Grossraum* that limited the reach of the British imperial *nomos* of the seas.[26] Pardo sought to withdraw the ocean floor from being an object of *Landnahme* under the extended Monroe Doctrine, not to mention the Cold War between the two superpowers, and proposed turning it over to the finality of world peace and non-appropriation in the form of the CHM. At the same time, Pardo's logic required thinking of the ocean floor as a *Grossraum* of its own, one under the jurisdiction of a new *nomos* of the planet.

But on what jurisprudential basis did Pardo suggest this be done? In his speech, Pardo points out that the 'dark oceans were the womb of life … Man, the present dominator of the emerged Earth, is now returning to the ocean depths' (1967: sec. 7). This mythopoetic rhetoric suggests that Pardo considered the 'dark oceans' as a site of nomothetic jurisgenesis that is alternative to the terrestrial portion of the planet, which for Schmitt would have been an impossibility.[27]

Pardo's reference to the 'dark oceans' also signals a move away from the 'internal sea' version of the archipelago of the Mediterranean. It opens up an alternative reading of the archipelagic in which the 'dark' abyss of the ocean (*pelagos*) serves as an origin (*archē*) for island-like territories that sprout from it as sea mountains.

The key to Pardo's proposal point is *not* to consider the deep ocean seabed as an extension of the terrestrial portion of the Earth, so that this part of the planetary surface may be legally placed beyond the reach of sovereign appropriation. As several critics have noted, Pardo's rhetorical ploy is to emphasise the 'inestimable value' of the submerged land and its promise to undo world economic inequality and underdevelopment, once adequate technology will render it open for the exploitation of its mineral resources and as a 'future source of food' (1967: sec. 33). Pardo is undoubtedly proffering here an oceanic pastoral imaginary that adopts the three elements of appropriation (*Nehmen*), apportioning (*Teilen*) and the cultivation or exploitation (*Weiden*) of the land that Schmitt identified as key features of any *nomos.* However, in Pardo the pastoral metaphor is meant to indicate a different jurisgenerative potential than the Schmittian one: the oceanic seabed is designated as a 'heritage' that comes under the pastoral control of humankind as stewards or trustees of 'riches' that are not marketable as commodities.[28] That is why Pardo argues that the ocean seabed should become the 'heritage' of humankind as a whole, rather than the property of a group of 'developed' nation-states, in line with what was proposed in the above-mentioned *Draft.*

Similarly, the *Grossraum* of the oceanic seabed that was envisaged by Pardo subverts Schmitt's characterisation of the *nomos* of the Earth as dividing up the globe along 'amity lines' beyond which a 'total' war is conceivable. In Pardo's proposal, the designation of the ocean seabed as the 'Area' does require drawing new lines in the sea but ones that *exclude* the possibility of war 'beyond the line'. These new lines are the terrestrial and archipelagic baselines drawn to separate what belongs to territory (and goes into the ocean, up to the end of the continental shelf) and what is oceanic. Pardo thus proposes to establish a *limes* ('border') that designates the extent of the terrestrial *nomoi* as opposed to the oceanic ones. When Pardo argues for the CHM principle to be applied to the ocean seabed, he does so by extending the logic of Mackinder's world island thesis: 'From the sea the vastest land masses can be dominated, and the sea in turn is dominated, and can be dominated, from the sea floor' thanks to the 'age of the nuclear submarine' (1967: sec. 47). His point is that nuclear deterrence would

be compromised if the seabed could be used by states seeking to track the exact locations of nuclear submarines. By showing how the ocean floor provides a new strategic dimension for planetary warfare that trumps the British imperial freedom of the seas (and a deterrence based essentially on nuclear submarines), he seeks to convince all players that the ocean seabed must be taken out of the 'great game' of imperial hegemony by CHM and that jurisdiction be given over to a specially designated world authority or alternatively to the United Nations General Assembly. Here, Pardo pivots on the recent debate on the de-militarisation of outer space by pointing out that the same risk of undoing nuclear deterrence on the seabed also applied to outer space.[29]

Prior to applying it to the oceanic seabed, the jurisdictional question of who governs the 'great spaces' of the planetary commons had come up in relation to the Cold War space race.[30] Pardo argues that the 'radical title' claimed on the basis of extending *res nullius* to *terra nullius* must be avoided for the oceanic *Grossraum* as it was for the Moon and other planetary objects. But the parallelism between oceanic and outer space *Grossräume* is employed by Pardo to establish the jurisdiction of CHM on a new 'planetary' basis. Pardo reasons that 'the air is the atmosphere of our planet; the seas and the oceans are the atmosphere of the submerged land which constitutes more than five-sevenths of the area of this earth' (sect. 8). By adopting the analogy between oceans and the atmosphere, Pardo shifts the land–sea dualism onto the plane of an 'atmospheric' analysis – one in which the dimension of air/aether is essential for the habitability of the planet. In so doing, he employs a proto-homeostatic model of life on the planet in which the idea of 'home' is extended *beyond* its terrestrial reach, *pace* Schmitt, and the oceans are not conceived simply as the 'dangerous and foreign' medium for the expansion of capitalism and technology. A few years prior to James Lovelock and Lynn Margulis's formulation of the Gaia hypothesis, Pardo's proto-ecological awareness of the oceans as essential parts of the Earth system offered an explicit ground for understanding CHM as entailing the ecological stewardship of the oceans.[31]

Although Pardo was intent on arguing for world jurisdiction only over the ocean floor and not over the 'high seas' above it (on which the principle of the freedom of the seas would be maintained),[32] by calling this 'submerged land' an 'Area' and giving it a geometric extension comprising five-sevenths of the entire surface of the planet, he abstracted the ocean floor from precisely the kind of geographical features (rivers, mountains, valleys, etc.) on the basis of which the modern state-formation territorialises space on land.[33] The point

is that the Area was not to be divided up as the terrestrial territories are divided up.[34] That is why it is problematic to claim that UNCLOS 'projects *sovereign legality* on ocean commons' (Lucia 2022: 122).[35] Vito de Lucia understands a *nomos* in a pre-Schmittian sense as a 'telluric projection from land to sea', where 'the land is the legal source of the power which a state may exercise over territorial extensions seaward' (2022: 128). Missing here is the idea that a *nomos* can emerge from the ocean (seabed) and recast the land in an archipelagic function. Tellingly, de Lucia employs Stuart Elden's (2013) claim that 'territorialisation' is part of sovereign machinery that transforms 'places' as 'living habitats' 'into space and then into territory … the transformation of the living into the measurable' and finally into the controllable through 'political technology' (Lucia 2022: 128). By contrast, I argue that Pardo's introduction of a 'planetary' conception of 'Area' to designate the oceanic seabed is more reminiscent of the conception of *tanah-air* in the postcolonial archipelagic imaginary, namely, the conception of a 'watery-land', where 'land' is seen to emerge out of the ocean and is de-islanded by the ocean.

Mann Borgese and the Political Economy of CHM

Credit for the explicit articulation of an 'elementary' approach to the international law of the oceans as providing a *nomos* that precludes the territorial enclosure of the oceans and limits the extension of state sovereignty over the planetary commons goes to Pardo's collaborator, Elisabeth Mann Borgese, Thomas Mann's youngest daughter and spouse of G. A. Borgese, who was the moving force behind the *Preliminary Draft of a World Constitution.*[36] For Mann Borgese, 'the ocean is a medium different from the earth, so different, in fact, that it forces us to think differently' (1998: 5–6). In an explicit recognition of ancestral *nomoi* derived from the sea, rather than land, Mann Borgese argues that international law must leave behind an earth-bound imaginary and begin to 'see the land as continuation of the sea … the people of the Pacific do in fact see it that way. The ocean is the real thing … the continents are islands floating on the world ocean' (1998: 4). Mann Borgese conceived of UNCLOS as 'an attempt to extend ocean governance to world governance' (Meyer 2022: 106). Hers is an archipelagic view of the relation between ocean and land, in the postcolonial sense of the term I described above, to signify the idea of 'watery-land', the thinking of land from out of the sea. This view also matches

with the geological evolution of the continents which, 300 million years ago, did in fact closely resemble an archipelagic distribution of land mass, with Australia attached to a green Antarctica, South and North America traversed by internal seas from north to south and east to west, and Europe itself looking like the Aegean Sea does today.[37] Turning Schmitt's land–sea dualism on its head, Mann Borgese argues that the 'the law of the land cannot swim': 'the fundamental concepts, evolved over millennia on land, like sovereignty, geographic boundaries, or ownership, simply will not work in the ocean medium where new political, legal and economic concepts are emerging' (1998: 5–6).

Mann Borgese's main innovation with respect to Pardo's approach to rethinking the law of the sea from out of the element of the ocean is the 'holistic' approach she brings to the problem of the global commons.[38] This holism prevents her from separating the seabed *nomos* from that of the whole ocean and, by extension, of the continents emerging out of it as a world archipelago. For Mann Borgese, UNCLOS was always meant to be a 'constitution for the ocean' that would serve as a 'model for a constitution for the world in the next century' (1998: 6). The key to this world constitution for the twenty-first century is that 'peace and security are inseparable from economic justice and environmental security'(1998: 6, referring to Pardo and Borgese 1974). The idea of CHM provided the basis to develop UNCLOS in synergy with the demands for a New International Economic Order, itself emerging out of the Bandung spirit. For Mann Borgese, CHM 'changed the relationship between poor and rich countries as it replaced the humiliating "donor–recipient" relationship with one among equal partners – all of whom had a right to share in the resources that had been declared to be the Common Heritage of Mankind' (1998: 6).

Unlike Pardo, Mann Borgese foregrounded the need to develop an 'economics of the common heritage' (1998: 9). She relied on the ideas of Vittorio (Orio) Giarini, one of the founders of the Geneva Association, a think tank for the study of insurance and risks. Giarini believed that the transition from an industrial to service economy in developed nations signalled a shift in the measurement of wealth from exchange value (= cost at moment of sale) to 'utilisation value'.[39] Utilisation value is 'not based on an exchange transaction between producer and consumer but on a cooperative relationship between "prosumers", both parties contributing to the production as well as the utilization process, no matter whether the product is bought and owned or leased and not owned' (1998: 11). The cost of anything produced should reflect the value that its consumption adds to 'heritage', understood as the total

stock of useful things in nature and culture. Because 'the greater part of ocean economics is based on a non-property and non-sovereignty reality' (1998: 12), the *nomos* of the oceans based on CHM makes the 'appropriation' of global commons into a function of common heritage and understands exploitation in terms of mandatory cooperative relations between producers and consumers in the form of trusteeships.[40]

Just like the *nomos* of the oceans moves beyond a logic of enclosure and private ownership, so too it moves beyond the terrestrial spatial imaginary that lies at the basis of territorial sovereignty. For Mann Borgese, UNCLOS represents 'a point of breakthrough in the history of law and [international] relations' because of the new 'spatial organization of the ocean', and 'rights and duties of states in that space' represent 'the complete negation of mutually exclusive territoriality' (1998: 110, 120). Like Schmitt, she believes that a *nomos* determines the internal relation between spatial localisation (*Ortung*) and state order (*Ordnung*). But for Mann Borgese, the *nomos* expressed by UNCLOS points towards a democratic and egalitarian governance of planetary global commons or *Grossraum* that eschews territorial sovereignty.

It is symptomatic that Mann Borgese relies on Harold Laski's critique of sovereignty and his theorisation of federalism as 'shared sovereignty' between all groups whose interests are affected by the *Grossraum*.[41] Laski proposed a system of 'international functionalism' where states would cede, partially or entirely, their sovereignty and 'would collaborate to devolve power and authority to a range of functional units' (Lamb 2019: 584). Only some such 'functionalist' approach to sovereignty could democratically address what today would be identified as the 'planetary' common concerns of peoples that cannot be dealt with by sovereign states either singly or in cooperation with each other because these matters of concern transcend the territorial limits of state sovereignty. By the late 1930s, Laski recognised what I have called the 'elementary' dimension of the *nomos*: 'We have to make a functional theory of society in which power is organized for *ends which are clearly implied in the materials* we are compelled to use' (quoted in Lamb 2019: 589). While Laski was thinking of the possibility that sovereign states would relinquish their sovereignty and pool their resources (in relation to coal and iron, wheat and gold) under a functional, egalitarian governance, much like the later principles of the European Coal and Steel Community and eventually of the European Union, Mann Borgese draws an explicit analogy between the 'ocean regime' contained within UNCLOS and these terrestrial

federations, except that for her the 'materials' of the ocean commons (rather than merely coal and steel) provide the elemental basis for a 'world union' rather than just a 'European Union' (1998: 122).[42]

For example, Mann Borgese understands the UNCLOS provision for 'Exclusive Economic Zones' as an example of Laski's 'functional regime' in the sense that the 'EEZ involves a partial negation of mutually exclusive territoriality in that inclusive rights of use with respect to such activities as navigation and overflight are incorporated' (1998: 120). She construes Part XV of the convention as establishing the *mandatory* 'peaceful settlement of disputes' over the 'Area' and ocean environments (1998: 120), something that effectively deprives states of their *jus belli* (freedom to decide whether and when to engage in war). She understands Part XIII of the convention as establishing a 'new international law of cooperation' between sovereign states 'in matters concerning the environment, resource management, marine scientific research, and technology development and transfer', and, with respect to sovereign rights over resources, the convention subjects these 'to the duty of conservation, environmental protection, and to some extent even sharing' (1998: 120). In all these provisions, Mann Borgese identifies examples of 'the cohabitation of sovereign rights and shared jurisdiction in the same space' (1998: 120), thus aligning UNCLOS with the ideals of Laski's 'pluralistic sovereignty'. Of particular interest is her claim that the principles in Articles 74 and 83 offer the possibility of 'freezing' sovereign territorial claims over disputed areas and shifting towards 'joint development or joint management zones'. I see here the suggestion that a relational form of 'archipelagic thinking' can be translated into the interpretation of UNCLOS through the notion of 'functional' sovereignty in the medium of the ocean. Given the current dispute over the South China Sea, and the risk that its *Grossraum* could be the theatre of a major new world conflagration, it is notable that thirty years ago Mann Borgese had already identified the Spratly Islands as a focus for a potential 'joint development zone' through the freezing of antagonistic territorial claims: 'Thinking into the next century [i.e., the twenty-first century] the joint development zone might cover the entire South China Sea' (1998: 129).

Conclusion

Mann Borgese's vision of UNCLOS as containing the seeds of a new *nomos* of the oceans that 'transcends the concept of sovereignty' rests

on the 'the concept of the common heritage of mankind, a concept of non-sovereignty as it is a concept of non-ownership' (1998: 121). Mann Borgese lived to see how in 1994 the Implementation Agreement of Part XI 'wiped out all the benefits the developing countries thought they had conquered in the 1970s' (1998: 112). This neoliberal 'implementation' of the International Seabed Authority over the 'Area' has prompted current critical legal theorists to question whether CHM could indeed ever deliver on the promises that Mann Borgese pinned on it. In conclusion, I want to argue that it would be a mistake to give up on CHM too quickly.

According to Surabhi Ranganathan, UNCLOS 'separates' – within the oceanic medium – land from sea, the ocean floor from ocean waters, in order to 'land grab' the former, fostering 'an extractive imaginary of the ocean floor' while keeping the principle of the freedom of the seas over the latter (2019: 576). By handing over the minerals on the sea floor to a CHM regime while leaving the fauna and flora to fall under the 'high seas regime' (2019: 590), UNCLOS cannot cope with phenomena like hydrothermal chimneys where minerals are a source for a 'dark food chain'. Undoubtedly, the lack of an 'Earth-systemic' approach to UNCLOS can turn its letter against its spirit. But this only strengthens Mann Borgese's suggestion to exploit the semantic potential of CHM in order for the jurisprudence of UNCLOS to not sever itself from a 'holistic' conception of the ocean as the 'source' of planetary life. In this sense, UNCLOS and CHM still withhold a potential for expanding 'eco-law' from the ocean depths onto land, thereby carrying out a postcolonial archipelagic vision of the *nomos* of the Earth.[43]

UNCLOS is also criticised for 'disembedding' the ocean seabed from 'pre-existing "systems of meaning and practice"' based on 'the narrow predication of "universal interest" on its mining potential' (Ranganathan 2019: 577). The charge is that Pardo's discursive apparatus has 'islanded' the ocean seabed by projecting onto it the imperial conception of the *nomos* of the sea and erasing prior Indigenous *nomoi.*[44] However, Mann Borgese argues that the 'oceanic view' written into UNCLOS recognises that ancestral, Indigenous *nomoi* are essential to the co-governance of global commons. My proposed archipelagic reading of UNCLOS shows that it is a mistake to construe the ocean seabed as a new *terra nullius,* whose 'radical title' belongs to its first 'explorers and discoverers'. Nothing is further from Pardo's and Mann Borgese's vision of CHM than to claim it as 'a cosmopolitan vision of spaceship Earth in which "mankind" is the ultimate subject of lawmaking' (Ranganathan 2016: 714).

Lastly, CHM has been criticised for allowing the implementation of an extractivist imaginary on the global commons. Everyone concurs that UNCLOS – as all the other *nomoi* of the planetary commons – was an attempt to bridge the interests of developed nations in accessing raw materials in the global commons with the interests of developing nations in participating in the exploitation and redistribution of these resources. However, critics like Isabel Feichtner dismiss the notion that these interests were meant to be pursued within the framework offered by CHM 'associated with safeguarding natural wealth and notions of trusteeship' (2019: 604). Feichtner is correct to argue that the above-mentioned neoliberal Implementation Agreement moots the sharing of 'financial' benefits that was supposed to be guaranteed through CHM because the 'the monetary value of CHM becomes a variable dependent on the profit expectations of investors' (2019: 627). But this does not invalidate Mann Borgese's insights that the 'economics' of CHM require a non-monetary understanding of 'heritage', where the resources of the ocean seabed are to be held in trust according to a trans-generational idea of humankind and its utilisation must factor in the idea of trustees as 'prosumers'.

For Pardo and Mann Borgese, CHM entails not only the *equal* 'freedom of access to use on the part of those having part in the heritage [that is, all future generations of human beings] but also implies *regulation of use for the purpose of conserving the heritage and avoiding the infringement of the rights of others*' (1974 cited in Mickelson 2019: 639).[45] On the 'elemental' approach to the oceanic *nomos* that I propose, the 'rights of others' should include the Rights of Nature, that is, the rights of all the beings, organic and inorganic, that compose the oceanic environment. It is only *within* this eco-centric conception of the trust and trusteeship that Pardo and Mann Borgese inscribe the 'fiscal' provisions that Feichtner discusses, namely, the 'equitable distribution of the benefits for exploitation of the heritage' (1974 as cited in Mickelson 2019: 639). In turn, there is nothing that prevents extending the trust to other-than-human beings, so that CHM extends jurisdiction to 'the notion of property that cannot be divided without the consent of all and which should be administered in the interests and for the benefit of all' (1974 as cited in Mickelson 2019: 639) where the totality of participants whose 'consent' and 'interests' need to be taken into account in the process of distributing and exploiting the ocean will include also other-than-human beings.

The point is that CHM's jurisdictional authority over the 'exploitation' of global commons is inherently linked to the meaning of

'heritage'. In turn, this meaning is articulated through conceptions of trust and trusteeship that, arguably, stand at odds with capitalist conceptions of private ownership because they allow for the 'utilisation' of what is held in common trust entirely separately from claims to ownership.[46] Such a conception of trust and trusteeship offers grounds to contest the 'corporativist' conception of terrestrial sovereignty that Feichtner, and other critics of CHM, project onto it. CHM is not reducible to a 'freedoms regime' where no nation is sovereign but every private actor is free to acquire property rights (Goldie 1983). It is possible to reclaim CHM as a jurisdictional authority for the 'functional' sovereignty of humankind over global commons that is opposed to the corporate sovereignty of 'islanded' private companies and nation-states.

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Notes

1. On Schmitt's spatial thinking, see the indispensable Legg (2011) and Galli (2010), neither of which considers archipelagoes. For an excellent collection on archipelagic thinking as a methodology and discipline, see Stephens and Miguel (2020).
2. See Schmitt (1949); for commentary, see Beneyto (2021). On different approaches to international law after this first 'spatial revolution', see Pagden (1998); Benton (2009); and Koskenniemi (2011).
3. On the mytho-history of the land–sea dualism, see Schmitt (2015) and the introduction by Zeitlin (2015). See also Derman (2011).
4. For general considerations on law and sea beyond Schmitt, see Jones (2016). For an attempt at a critique of the axiom, see Benton and Perl-Rosenthal (2020). The literature on the 'battle of the books' between Grotius and Selden that determined the first law of the oceans is vast; see Anand (1982) and Treves (2015).
5. Mackinder argued that his aim was 'to exhibit human history as part of the life of the world organism': a remarkably 'planetary' point of view (1904: 422). The theory is fully worked out in Mackinder (1919) with the hypothesis that the British Empire, based on sea power, might one day be overcome by Eurasia, considered as

the largest 'world island', strong enough to defeat the other 'islands' which include North and South America, Japan, Malaysia and Australia. Schmitt refers to Mackinder in Schmitt (1995: 528).

6. The traditional adoption in international relations literature of the Mackinder paradigm is still obvious in recent accounts, such as Marshall (2015); Kaplan (2012); and Bosco (2022) – and with special reference to the South China Sea, see McCoy (2016) and Fettweis (2020).
7. This island-centered view of the rise of the modern European world order is missing in the Grotius-inspired narrative of Taylor (2004), and it is also absent in Koskenniemi (2021).
8. See, for example, Sivasundaram (2020), who writes a history of the European empires from a perspective that I would describe in terms of the 'de-anchoring' of the English island and the 'archipelagic' resistances it has encountered. For current archipelagic thinking, the archipelago is 'an anti-imperialist political form … the principal state paradigm of the postcolonial Cold War period' (Lee 2020: 327, 329).
9. On this outer space imaginary, see now Rubenstein (2021).
10. Schmitt speaks of the 'industrial development of the underdeveloped, [as] the crucial problem of the *nomos* of the earth in our time' (2018: 147). On Schmitt's postcolonial imaginary, see Hohendahl (2018); Kalyvas (2018); and (Heron 2022).
11. Drawing from the analysis of Sivasundaram (2013).
12. On Bandung and decoloniality, see Mignolo (2011). For Bandung and archipelagic thinking, see Roberts (2020). In general, Stephens and Miguel (2020) is very helpful in determining the current range of archipelagic thinking even though the connection with the history of international law is not always sustained or theoretically explored.
13. Tregua Raynerii Geno, Duci Venetorum, cum Michele Palaeologo Graecorum Imperatore: 'Item de insuli de Arcipelago, de illis videlicet, de [e]quibus nos et comune Venetiarium habemus redditus, nullam molestiam nobis faciet, vel fieri permittet, vel fieri faciet per se vel alius, ullo modo vel ingenis' [Likewise, concerning the islands of the archipelago, that is to say, of which we and the Commune of Venice have rent, he will not cause us any trouble, or allow it to be done, or cause it to be done by himself or another, by any means] (Wien 1857).
14. 'Spanish projections of Caribbean islands as a New World archipelago analogous to the Aegean' (Roberts 2020: 85). The Dutch were the first to apply the term 'archipel' to Indonesia. The term 'Indonesia' itself appears in 1850 in an article by J. R. Logan in the *Journal of the Indian Archipelago and East India*: 'Indonesia which is merely a shorter synonym for Indonesian Islands on the Indian Archipelago' (Danusaputro 1974: 56).
15. On the metaphoric idea of the abyss as 'end of the world' for current archipelagic thinking, see now Pugh and Chandler (2023).
16. This is not to say, as Quynh N. Pham and Robbie Shilliam point out in their introduction to *Meanings of Bandung,* that Indonesia, in its fraught post-independence conflict over Borneo, avoided engaging itself in 'islanding' practices that stand in tension with the spirit of Bandung. I thank one reviewer for reminding me of this important point.
17. As Roberts (2020) discusses, the choice of national language fell on Malay, rather than on the colonial Dutch or the ethnic Javanese, because Malay was the language of interaction between the thousands of islands composing the archipelago.
18. See the records of the Indonesian representative's speech at the 1974 UNCLOS conference found in Kusumaatmadja (2003).
19. For this complex and ongoing debate in international law, see Zou (2015); Wang (2017); and Seo (2024).
20. On oceanic mobility in the Anthropocene and considered from a planetary perspective, see Clark and Szerszynski (2020) and Neyrat (2016).
21. It is unclear from where Danusaputro takes the phrase 'whole unit': it is not present in the text of the Venice treaty, although the idea of non-interference on the part of the Byzantine emperor over the archipelago is clearly stated. Most likely, Danusaputro is

here citing from the speech by Kusumaatmadja at the 1974 UNCLOS conference and is seeking a precedent for this use of archipelago in the history of international law.

22. For the argument that UNCLOS should be understood as a new 'constitution of the oceans' that effects 'a revolution in international relations [and] . . . has the potential to transform the relationship between poor and rich countries', see Mann Borgese (1978: 375).
23. The *Draft* was conceived by Hutchins and Borgese at the University of Chicago in 1948. For the connection between the drafting of this world constitution and the new law of the sea, see (Meyer 2022). Critical legal theorists like Ranganathan (2016: 706) claim that the idea of CHM was taken from Lyndon Johnson's 13 July 1966 speech, in which the US president claims that 'we must ensure that the deep seas and the ocean bottoms are, and remain, the legacy of all human beings'. Ranganathan does not mention the precedence of the *Draft,* which also precedes other genealogies of CHM tied to the global commons of outer space such as in Schachter (1952). For discussion of the latter, see Craven (2019). On the currently contested status of the UNICLOS as a 'constitution for the oceans', see now Scott (2023).
24. See Ranganathan (2016), whose claims are discussed below.
25. On the Truman Proclamation as a 'land grab' of the continental shelf, see Ranganathan (2019: 580), and for the legal arguments, see Waldock (1950). For the juridical reaction mounted by Latin American international lawyers like Alejandro Alvarez, see Scarfi (2017) and Leonhard (1982), and on the role played by Alvarez in the development of ideas that would flow into UNCLOS, including perhaps the earliest formulation of archipelagic states, see Dubner (1976) and Treves (2015).
26. Schmitt occupied himself in several writings (e.g. Schmitt 2011) with the changing interpretation of the Monroe Doctrine; see Specter (2017).
27. For Schmitt, only the 'earth' is the true 'mother of law' (2003a: 42).
28. On the genealogy of the pastorate, see now Meloni and Bashirov (2023). On the economic meaning of heritage, see Douglas (1920).
29. The proclamation of CHM as the fundamental principle of oceanic and outer space *nomoi* was nearly simultaneous. The key theorist here was the Argentinian international lawyer Aldo Armando Cocca, who argued in 1967 that the resources of the Moon and other celestial bodies are the 'common heritage of all mankind': see the Argentinian proposal in the *Draft Agreement on the Principles Governing Activities in the Use of Natural Resources of the Moon and Other Celestial Bodies,* UN Doc A/AC.105/C.2/L.71 and Corr: 1 (1970).
30. See Schachter (1952), and on outer space as a *res communis humanitatus* which 'calls for free access to the space environment areas and resources subject to the duty on the part of the states engaged in such conduct to share resulting benefits and those of others states which do not possess exploitative capabilities', see Hoffstadt (1994: 588, n.61) and Goldie (1983).
31. The 'ecological' basis of Pardo's discourse was recognised early on: 'The entire ecology of the planet will not arrange itself onto neat national compartments' (Meyer 2022: 123). Tirza Meyer is here referring to Glazer (1974). An ecological reading of CHM was first articulated by Taylor (2008).
32. According to Meyer, the limitation of the oceanic *nomos* to the seabed is precisely one point over which Pardo and Mann Borgese disagreed, since Mann Borgese advocated a 'holistic' understanding of the oceans as systems; see Meyer (2022: ch. 5).
33. On territorialisation and modern state formation, see Elden (2013), and for a planetary critique of territorial thinking, see now Espejo (2020).
34. I disagree with the claim that Pardo's proposal to consider the seabed in terms of 'zones' and their abstract separation from the water columns above them 'make it possible to view the seabed as primarily a mining site' (Ranganathan 2019: 596). I argue that Pardo's designation of the seabed as an 'Area' that belongs to CHM and not to sovereign states is a gesture of de-territorialisation.
35. Emphasis is mine.

36. Prue Taylor (2018) calls Mann Borgese the 'mother' of the new law of the sea. Meyer has argued that Pardo's speech and the language of CHM for oceans 'reminded her [Mann Borgese] of the proposal in the old draft world constitution to apply the concept of common property to the world' (2022: 65).
37. For a 'deep history' of the archipelagic, I refer to David Turnbull's article in this special issue.
38. In a 1969 lecture on the ocean regime, she wrote: 'Two courses are open to mankind. One is to extend the law of the land to the submarine lands. That is, as technology develops, the developed nations would appropriate even larger portions of the submarine lands and subject them to their national sovereignty. The other course is to extend the law of the sea to the ocean floor adding a fifth freedom to those embodied in the Convention on the High Seas by declaring that the ocean floor and its resources belong to mankind as a whole, are God's road, and cannot be appropriated by any nation' (cited in Meyer 2022: 108).
39. For Giarini, the transition to a service economy and the recognition of the destruction of the environment due to industrial capitalism tend towards establishing an inverse relation between riches (for example, the 'health' of the planet) and wealth (capital accumulation) (Giaraini and Jacobs 2011). Giarini belongs to the early wave of degrowth discourse on political economy. For a current example of this discourse, see Saito (2024).
40. Mann Borgese calls for moving beyond 'ownership' in the Roman sense of *ius utendi et abutendi* 'to include user rights within a trusteeship concept with broadened ethical implications' (1998: 11).
41. For a comparative discussion of Schmitt and Laski, see Vatter (2017).
42. For an extension of this line of reasoning and with the addition of a conceptual apparatus drawn from 'new materialism', see the essays in Braverman and Johnson (2020).
43. On this elemental conception of jurisgenesis, see now Davies (2022).
44. See the discussion on Indigenous participation in the International Seabed Authority in Ranganathan (2024) and the other contributions to the special issue of *American Journal of International Law Unbound* that discuss some examples of Indigenous ocean-based *nomoi.*
45. Emphasis is mine.
46. For an attempt to work out the implications of this eco-centric conception of trust, see Vatter (2020).

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